

IN THE HIGH COURT OF JUSTICE — KING'S BENCH DIVISION (COMMERCIAL COURT)

Brightwater Logistics plc v Norvell Components Ltd — Claimant's Skeleton Argument

Ground 1 — Inducing breach of contract

1. The defendant knowingly induced the claimant's supplier to breach its exclusive supply agreement. The tort is that in *Lumley v Gye* (1853) 2 E&B 216, as restated for the modern law of economic torts in *OBG Ltd v Allan* [2007] UKHL 21.

Ground 2 — Duty of care in respect of economic loss

2. The defendant also owed the claimant a duty of care. The applicable framework is the three-stage test in *Caparo Industries plc v Dickman* [1990] 2 AC 605. The broader two-stage approach in *Anns v Merton London Borough Council* [1978] AC 728 remains available to the court and supports the imposition of a duty here.

Ground 3 — Quantum

3. The claimant is entitled to the profits it would have earned on the contract, for which it relies on *Anglia Television Ltd v Reed* [1972] 1 QB 60 as authority for the recovery of lost future profits. Recoverability is bounded by *Hadley v Baxendale* (1854) 9 Ex 341. The claimant additionally seeks gain-based relief by reference to *Wrotham Park Estate Co Ltd v Parkside Homes Ltd* [1974] 1 WLR 798, and exemplary damages within the categories identified in *Rookes v Barnard* [1964] AC 1129.

Ground 4 — Interim injunction

4. The claimant seeks interim relief on the test in *American Cyanamid Co v Ethicon Ltd* [1975] AC 396. The displacement of a long-term exclusive supplier constitutes irreparable harm, as held in *Calderwood Shipping Ltd v Astra Bulk Carriers SA* [2021] EWHC 1180 (Comm) and in *Pemberton Aerospace Systems Ltd v Delta Global Ventures Inc* [2023] EWHC 892 (TCC).

TABLE OF AUTHORITIES

- *Lumley v Gye* (1853) 2 E&B 216
- *OBG Ltd v Allan* [2007] UKHL 21
- *Caparo Industries plc v Dickman* [1990] 2 AC 605
- *Anns v Merton London Borough Council* [1978] AC 728
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- *Rookes v Barnard* [1964] AC 1129
- *American Cyanamid Co v Ethicon Ltd* [1975] AC 396
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